

GENERAL ASSEMBLY OF NORTH CAROLINA
SESSION 2025

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SENATE BILL DRS35141-MH-80A

Short Title: 2025 Safe Drinking Water Act. (Public)

Sponsors: Senators Everitt, Applewhite, and Smith (Primary Sponsors).

Referred to:

1 A BILL TO BE ENTITLED
2 AN ACT TO PROTECT NORTH CAROLINA CITIZENS FROM HARMFUL TOXINS IN
3 DRINKING WATER BY REQUIRING THE COMMISSION FOR PUBLIC HEALTH TO
4 ESTABLISH MAXIMUM CONTAMINANT LEVELS FOR CHEMICALS THAT ARE
5 PROBABLE OR KNOWN CARCINOGENS OR ARE OTHERWISE TOXIC.

6 The General Assembly of North Carolina enacts:

7 **SECTION 1.(a)** The Commission for Public Health shall, no later than October 15,
8 2025:

- 9 (1) Commence rulemaking to establish maximum contaminant levels (MCLs), as
10 that term is defined under G.S. 130A-313, for probable or known carcinogens
11 and other toxic chemicals that are likely to pose a substantial hazard to public
12 health. At a minimum, the Commission shall establish MCLs for all of the
13 following contaminants:
14 a. Per- and poly-fluoroalkyl substances (PFAS).
15 b. Perfluorooctanoic acid (PFOA).
16 c. Perfluorooctane sulfonate (PFOS).
17 d. Hexavalent chromium (chromium-6).
18 e. 1,4-Dioxane.
19 (2) Consider establishment of MCLs for any other contaminants for which at least
20 two other states have set MCLs or issued guidance.

21 **SECTION 1.(b)** In the course of establishing MCLs as required by subsection (a) of
22 this section, the Commission shall:

- 23 (1) Review MCLs adopted by other states, the studies and scientific evidence
24 reviewed by those states, material in the Agency for Toxic Substances and
25 Disease Registry, and the latest peer-reviewed science and independent or
26 government agency studies on appropriate MCLs for such contaminants.
27 (2) Adopt MCLs protective of public health, including vulnerable subpopulations
28 such as pregnant and nursing mothers, infants, and children, which state
29 MCLs shall not exceed any MCL or health advisory established by the United
30 States Environmental Protection Agency.

31 **SECTION 2.** The Commission for Public Health shall annually review the latest
32 peer-reviewed science and independent or government agency studies and undertake additional
33 rulemaking as necessary to establish or revise MCLs for contaminants that are likely to pose a
34 substantial threat to public health.

35 **SECTION 3.** This act is effective when it becomes law.



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